

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 02/17/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0002198

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: ALBERT COLLELL

and

RESPONDENT: ADRIANA PETERSON

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

Adriana Peterson (“Wife”) filed a request for *ex parte* emergency *pendente lite* spousal support on January 13, 2026. The court found no emergency and Wife filed her Request for Order (RFO) on January 15, 2026, seeing *pendente lite* spousal support.

Although the parties have executed a marital settlement agreement (“MSA”) that calls for spousal support, it has not yet been reduced to a judgment. Albert Collell (“Husband”) acknowledges the agreed-upon support obligation in the MSA, but argues it is not yet an enforceable Judgment. Husband points to unspecified changes in his financial circumstances that make it difficult for him to pay the \$2,500 per month called for in the MSA. Husband has filed an income and expense declaration on January 5, 202 that demonstrate he earns, on average, \$16,404 per month and has monthly expenses of \$10,659. Wife is currently unemployed, receiving Social Security retirement benefits of \$1,317 per month, CalFresh public assistance in the amount of \$298 per month and is caring for her disabled sister.

Pendente lite spousal support is warranted. Wife asks for guideline support. According to the attached Xspouse calculation, guideline *pendente lite* spousal support is \$4,014 per month. The Court awards *pendente lite* support in the amount of \$4,014, effective January 13, 2026. This is a marriage of short duration, and it appears that Wife has marketable skills. Wife is advised that goal of this state is that she shall make reasonable good faith efforts to become self-supporting, and that the failure to make reasonable good faith efforts may be one of the factors considered by the court as a basis for modifying or terminating spousal support. (Fam. Code §4330; *Marriage of Gavron* (1988) 203 Cal.App.3d 705, 712.)

The Court reserves jurisdiction until April 7, 2026) to modify spousal support retroactive to January 13, 2026. If the parties submit a Stipulation or a Judgment by April 7, 2026 which contains an alternative support amount, and the Stipulation or Judgment is approved by the Court, it will replace this order retroactive to January 13, 2026.

Wife also asked the Court to enforce the judgment, which the Court interprets as a motion under Code of Civil Procedure section 664.6. The parties are referred to the Family Law Facilitator for assistance in preparing and filing a judgment packet.

The case progress conference set for April 7, 2026 will remain on calendar unless the parties file a complete judgment packet.

As authorized by California Rules of Court, Rule 5.125 the Court shall prepare the Findings and Order After Hearing.

The parties shall comply with Marin County Superior Court Local Rules 7.12(B) and (C). Any party requesting oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person. Absent proper notice, no oral argument will be permitted, and if no request is made, the tentative ruling shall become the order of the Court.

Appearances may be made in person or via Zoom unless otherwise ordered. Parties are responsible for ensuring adequate connectivity and availability; the Court may proceed in a party's absence if technical issues arise. Parties requesting oral argument must appear in person or remotely by Zoom (video or telephone) in accordance with court website guidelines. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person.

2026

Guideline Summary

Monthly Figures

Fixed Shares	Husband	Wife	Monthly Figures		Cash Flow	
Number of children	0	0	2026		Combined net spendable	12997
Percent time with NCP	0.00%	0.00%				
Filing status	MFJIN	MFJIN			Husband	
Number of exemptions	1	1	Nets (adjusted)		Payment cost/benefit	-4014
Wages and salary	16404	0	Husband	11680	Net spendable income	7667
Self employed income	0	0	Wife	1317	Federal income tax	2145
Other taxable income	0	0	Total	12997	Federal employment tax	1173
TANF CS received	0	298	Support		State income tax	803
Other nontaxable income	0	1317	Addons	0	State employment tax	197
New spouse income	0	0	Guideln CS	0	Total taxes	4318
Employee 401-k contribution	0	0	Marin SS	4014	Federal filing status	MFJIN
Adjustments to income	0	0	Total	4014	State filing status	MFJIN
SS paid prev marriage	0	0			Wife	
CS paid prev marriage	0	0			Payment cost/benefit	4014
Health insurance	406	0			Net spendable income	5331
Other medical expenses	0	0			Federal income tax	0
Property tax expenses	0	0			Federal employment tax	0
Ded interest expense	0	0			State income tax	0
Contribution deduction	0	0			State employment tax	0
Misc tax deductions	0	0			Total taxes	0
Qualified business income deduction	0	0			Federal filing status	MFJIN
Required union dues	0	0			State filing status	MFJIN
Mandatory retirement	0	0				
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				

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Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband